

U.P. Co-operative Societies (Second Amendment) Act, 2003

Source: <https://indiankanoon.org/doc/99278172/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with
PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Uttar Pradesh - Act

U.P. Co-operative Societies (Second Amendment) Act, 2003

UTTAR PRADESH

India

U.P. Co-operative Societies (Second Amendment) Act, 2003

Act 10 of 2003

Published on 17 December 2003

Commenced on 17 December 2003

[This is the version of this document from 17 December 2003.]

[Note: The original publication document is not available and this content could not be verified.]

U.P. Co-operative Societies (Second Amendment) Act, 2003

(U.P. Act

10 of 2003

)

Statement of Objects and Reasons. - With a view to ensuring effective and optimum payment/utilisation of paid up shares of the State Government, loans and Government guarantees it was decided to amend the Uttar Pradesh Co-operative Societies Act, 1965 (U.P. Act

11 of 1966

) to provide for vesting of power in the concerned Registrar of transferring assets and liabilities in whole or in part of a cooperative sugar mill in which the majority of the shares are held by the State Government, and which has become sick and there is no possibility of rehabilitating it and for empowering the State Government to make rules and to give

directions to the Registrar with respect thereto.

Since the State legislature was not in session and immediate legislative action was necessary to implement the aforesaid decision, the Uttar Pradesh Co-operative Societies (Second Amendment) Ordinance, 2003 (U.P. Ordinance 15 of 2003) was promulgated by the Governor on May 30, 2003.

The replacing Bill of the aforesaid Ordinance could not be introduced in the session of the State Legislature commenced on September 2, 2003 due to unavoidable reasons. Since the enforcement of the aforesaid Ordinance was to expire on expiry of the period of six weeks from the commencement of the session of the State Legislature i.e. after October 13, 2003, it was decided to replace the aforesaid Ordinance by another Ordinance.

Since the State Legislature was not in session and immediate legislative action was necessary to implement the aforesaid decision, the Uttar Pradesh Co-operative Societies (Second Amendment) (Second) Ordinance, 2003 (U.P. Ordinance 23 of 2003) was promulgated by the Governor on October 13, 2003.

This Bill is introduced to replace the aforesaid Ordinance 23 of 2003.

(As passed by the Uttar Pradesh Legislature)

Received the assent of the Governor on December 16, 2003 and published in the Uttar Pradesh Gazette, Extraordinary, Part 1, Section (Ka), dated 17th December, 2003, pages 3-5.

An Act further to amend the Uttar Pradesh Co-operative Societies Act, 1965.

It is hereby enacted in the Fifty-fourth Year of the Republic of India as follows:-

1.

Short title and commencement.

(1)

This Act may be called the Uttar Pradesh Co-operative Societies (Second Amendment) Act, 2003.

(2)

It shall be deemed to have come into force on May 30, 2003.

[Section 2, Incorporated in the principal Act]

3.

Repeal and savings.

(1)

The Uttar Pradesh Co-operative Societies (Second Amendment) (Second) Ordinance, 2003 (U.P. Ordinance 23 of 2003) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the provisions of the principal Act as amended by the Ordinance referred to in sub-section (1) or by the Uttar Pradesh Co-operative Societies (Second Amendment) Ordinance, 2003 (U.P. Ordinance 15 of 2003) shall be deemed to have been done or taken under the corresponding provisions of the principal Act as amended by this Act as if this Act were in force at all material times.

Related AI tags, queries and research notes

Translation